

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

SUPAKIT KHIEWDEE,

Petitioner

VS.

YAN P. CAI,

Respondent

) Case Number: FDI-21-795408

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ATTORNEY FEES AND COSTS, ENFORCEMENT OF JUDGEMENT; CONTEMPT; OST RE:  
PROHIBITING PETITIONER FROM RE-LEASING OAKLAND AND DALY CITY PROPERTIES

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the  
Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Supakit Khiewdee and Respondent Yan P. Cai.
- 2) On 7/8/25, Judgment of Dissolution was entered incorporating a martial settlement agreement with provisions for division of community property including:
  - a. 182 Accacia Street, Daly City, California. Prior to the division of the proceeds of the home after all debts are paid with respect to the existing mortgage, Husband shall receive reimbursement for his separate property contribution towards this real property in the form of the down payment in the amount of \$66,945 and Wife will receive her separate property contribution towards this real property in the form of the down payment in the amount of \$33,500. The remaining proceeds from the sale of this real property shall then be evenly divided between the parties. Each of the parties will be required Lo report their one-half share of the proceeds or sale and pay their respective share of the capital gains taxes owed, each using their individual deduction under IRC 121. Each of the parties

1 shall indemnify and hold the other harmless should they fail to pay their share of the  
2 capital gains taxes on the funds received from the sale of Accacia Street.

- 3 b. 10205 Longfellow Drive, Oakland California shall be conferred Husband as his sole and  
4 separate property without offset. Husband shall indemnify and hold the other harmless  
5 should any issue arise with respect to this property regardless of the date the issue arose.  
6 Husband shall remove Wife from the Title of the Oakland property and the Mortgage of  
7 this Oakland property. Wife shall cooperate and sign any and all necessary documents  
8 needed to effectuate this transfer. Husband shall refinance, assume, or extinguish the  
9 mortgage within 180 days from entry of Judgment. Husband shall provide the submitted  
10 application to Wife within 5 business days of submission. If Husband fails to refinance,  
11 assume, or extinguish the mortgage in this time period, then the parties will sign with an  
12 agent no later than November 1, 2025 and the parties will have the property listed for sale  
13 no later than February 1, 2026. The current tenant shall vacate no later than December 31,  
14 2025. If Husband has been unable to refinance, assume, or extinguish the mortgage in the  
15 time period provided, then Husband shall not relet the property and shall immediately  
16 inform the tenant that the lease shall not be renewed. Husband shall provide to Wife the  
17 lease agreement no later than March 7, 2025.

- 18 3) On 12/18/25, Respondent filed a Request for Temporary Emergency (Ex Parte) Orders seeking:  
19 (a) enforcement of judgment; (b) a finding of contempt for Petitioner's failure to comply with the  
20 terms of the judgment; (c) \$5,000 in Family Section 271 attorney's fees sanctions; and (c) an  
21 order shortening time on Respondent's requests to: (i) prohibit Petitioner from re-leasing  
22 properties located at 182 Accacia Street, Daly City (Daly City property) and 10205 Longfellow  
23 Drive, Oakland (Oakland property) and (ii) order Petitioner to engage realtors Lilian Cai and  
24 Lynn Tanatanyan to execute listing agreements and prepare the properties for sale.
- 25 4) On 12/19/25, the Court granted Respondent's Temporary Emergency (Ex Parte) Order seeking an  
26 order shortening time on and set the matter for hearing on 12/30/25. In the interim the Court  
27 prohibited Petitioner from re-leasing the Daly City and Oakland properties absent further order of  
28 the court or written agreement between the parties.
- 29 5) On 12/23/25, Respondent filed an Income and Expense Declaration.

- 1 6) At the prior 12/30/25 hearing, the Court continued the matter to 3/17/26 at Petitioner's request to  
2 permit Petitioner time to retain legal counsel.
- 3 7) On 2/6/26, Respondent filed a supplemental declaration reiterating that Petitioner failed to  
4 comply with the terms of the judgment and augmenting the request for attorney's fees sanctions  
5 under Family Code section 271 to \$20,000.
- 6 8) On 2/6/26, Counsel for Respondent filed a declaration augmenting the request for attorney's fees  
7 sanctions under Family Code section 271 to \$20,000 and asserting that Respondent incurred  
8 \$29,864.45 in legal fees to date due to Petitioner's "repeated delays, lack of cooperation, and  
9 refusal to meaningfully engage in settlement efforts."
- 10 9) On 3/9/26, Respondent filed an update declaration alleging that Respondent has emailed  
11 Petitioner on eight different occasions seeking compliance with the judgment terms.
- 12 10) At the prior 3/17/26 hearing, the Court continued the matter to 5/12/26 to permit Petitioner time  
13 to secure counsel.
- 14 11) On 5/1/26, Petitioner filed a Request to Reschedule Hearing, which Respondent opposed on  
15 5/7/26. The Court denied the Request to Reschedule Hearing for no good cause shown.
- 16 12) On 5/6/26, Petitioner filed a Responsive Declaration seeking \$10,000 in sanctions against  
17 Respondent under Family Code section 271 for "frivolously filing a RFO that contains false and  
18 misleading statements," which can be deducted from her share of the net sale proceeds from the  
19 Daly City property. Petitioner asserts that he did not re-lease or attempt to re-lease the two  
20 properties, and he repeatedly told Respondent that he wanted to sell the Oakland property to  
21 buyout her interest in Daly City property. Petitioner states he signed the listing agreement for the  
22 Oakland Property on 11/26/25 and the listing agreement for the Daly City property on 3/6/26.  
23 However, he tried to exercise his right of first refusal to purchase the Daly City property before  
24 selling, but Respondent "unjustifiably refused without reason". Petitioner alleges that Respondent  
25 and Respondent's counsel acted in bad faith by falsely misrepresenting that the Tentative Ruling  
26 was adopted at the prior 3/17/26 hearing.

27 **B. Findings and Order**

- 28 1) Respondent's request for judgment enforcement is GRANTED.
- 29

- 2) While the Court understands this issue may be moot, the Court nonetheless reaffirms that Petitioner remains prohibited from re-leasing the properties located at 182 Accacia Street, Daly City (Daly City property) and 10205 Longfellow Drive, Oakland (Oakland property).
- 3) Petitioner's request for Right of First Refusal for the Daly City property DENIED as Respondent did not accept Petitioner's offer to buy out her interest in the Daly City property.
- 4) Petitioner shall forthwith cooperate with realtors Lilian Cai and Lynn Tanatanyanon to execute any outstanding listing agreements or actions necessary to prepare the Daly City property and Oakland property for sale. This order includes, but is not limited to, fully cooperating to sign any and all documents necessary to prepare both properties to be listed, to list the properties, and to sell the properties within 48 hours of receipt of the documents.
- 5) If either party fails to comply with signing any documents necessary to effectuate the orders set forth above, the party may file an Ex Parte Request for Order asking the Court to appoint the Clerk of the Court to serve as elisor to sign the documents on the other party's behalf. The filing party must attach to the Ex Parte Request for Order a copy of the document(s) to be signed.
- 6) The Court reserves jurisdiction over Petitioner's request for reimbursement for half of the expenses for the Daly City property.
- 7) Respondent's request for \$20,000 in Family Section 271 attorney's fees sanctions is DENIED as the Court finds both parties engaged in uncooperative conduct that frustrates the policy of law to promote settlement.
- 8) Respondent's request for a finding of contempt for Petitioner's failure to comply with the terms of the judgment is beyond the scope of relief available at this hearing and is therefore DENIED without prejudice.
- 9) Counsel for Respondent shall prepare the Findings and Order After Hearing.
- 10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within

1 10 days may allow the other party to prepare a proposed order and submit it to the court in  
2 accordance with CA Rules of Court, Rule 5.125(d).